



CHAPTER 37.

An Act to repeal the Straits Settlements Act, 1866, and to make further provision for the government of the territories heretofore known as the Straits Settlements.
[26th March 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) On such day as His Majesty may by Order in Council appoint (hereinafter referred to as "the appointed day") the Straits Settlements Act, 1866, shall be hereby repealed, and the Straits Settlements (that is to say, the settlements and dependencies mentioned in the Schedule to this Act) shall cease to be a single colony.

Division of
Straits
Settlements.
29 & 30 Vict.
c. 115.

(2) On and after the appointed day the said settlements and dependencies shall be divided into such territories as His Majesty may by Order in Council direct, and those territories shall be governed, either singly or in conjunction with such other territories (whether falling within the Schedule to this Act or not) as may be specified in the Order, and an Order in Council under this subsection may contain such provisions—

- (a) determining the laws which, on and after the appointed day, are (subject to amendment or repeal by any competent legislature or authority) to remain valid as laws of any of the said territories, notwithstanding the change in the government thereof effected by the Order ;
- (b) adapting or modifying any such laws as aforesaid, and any other laws in force at the passing of this Act relating or referring to any of the said territories ;

(c) dealing with incidental, supplementary or consequential matters,

as appear to His Majesty in Council necessary or expedient in view of any such change as aforesaid.

(3) Any Order in Council under the last foregoing subsection may be varied or revoked by a subsequent Order in Council.

58 & 59 Vict.
c. 34.

(4) As from the appointed day any instrument having effect under the Colonial Boundaries Act, 1895, relating to any of the settlements and dependencies mentioned in the Schedule to this Act shall cease to have effect.

Application
of British
Settlements
Acts.

2. The British Settlements Acts, 1887 and 1945 (which authorise His Majesty to make laws and establish institutions for British settlements as defined in those Acts) shall apply in relation to each of the territories into which the said settlements and dependencies are divided by Order under this Act as if it were a British settlement as so defined.

Short title.

3. This Act may be cited as the Straits Settlements (Repeal) Act, 1946.

SCHEDULE.

The Settlement of Singapore; the Cocos or Keeling Islands; Christmas Island; the Settlement of Penang (including Province Wellesley); the Settlement of Malacca; the Settlement of Labuan; and the dependencies of the said settlements.

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